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Case Number: 24BBCV00019 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Further Response to Requests
for Admission; Request for Sanctions

Hearing Date: 9/4/26

CASE NO.: 24BBCV00019

CASE NAME: Richard Eugene Lund v. Edwin Arieal
Subuyujzuleta

Moving Party: Plaintiff Richard Eugene Lund

Responding Party: Defendant Edwin Arieal Subuyujzuleta

Notice: Sufficient

Ruling: DENIED.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested AND ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action stemming from a vehicle accident. On January 3, 2024, Plaintiff Richard Eugene Lund ("Plaintiff") filed the complaint against Defendant Edwin Arieal Subuyujzuleta ("Defendant").

On July 7, 2026, Plaintiff filed a motion to compel further response Requests for Admission (RFAs) (Res ID: 5950). On July 8, 2026, the Court denied the motion. (See 7/8/26 Minute Order.) Although the motion was denied, the matter appears on calendar, Plaintiff has not moved for relief from this order. Accordingly, the order DENYING that motion stands.

On July 22, 2026, Plaintiff subsequently filed the instant motion seeking an order compelling further response of the same set of RFAs (Res ID: 4729). On August 24, 2026, Defendant filed opposition. On August 26, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing," the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., § 2033.290(c); see Vidal Sassoon v. Superior Court (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further

Response to Requests for Admission

"On receipt of a response to requests for

admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) an answer to a particular request is evasive or incomplete, (2) an objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290 (a).)

A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040 and a separate statement, required under the California Rules of Court, or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2033.290 (b).)

DISCUSSION

Timeliness

Here, counsel declares that supplemental responses to propounded RFAs were provided on July 13, 2026. (Halpern Decl., ¶ 6.) The instant motion was filed on July 20, 2026, 7 days after the issuance of supplemental responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Meet and Confer

A motion to compel further responses must be accompanied by a “meet and confer” declaration “showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here, Plaintiff declares that they sent a meet and confer letter on July 15, 2026, in an effort to discuss and cure deficiencies. (Halpern Decl., ¶ 7; Halpern Add. Decl. ¶ 5.) However, Defendant argues that no meet-and-confer declaration was included in the motion as required under statute. (Opp., 3.) In reply, Plaintiff argues that the record contradicts Defendant’s argument that the meet and confer requirement was not met. (Reply, p. 3.) Plaintiff reiterates that the parties met and conferred to discuss amended responses, but Defendant did

not deliver them. (Reply, p. 3.)

Plaintiff supplied the court with a declaration detailing meet and confer efforts. Accordingly, the requirement is met.

Separate Statement

California Rules of Court, rule 3.1345 requires a separate statement to be filed in connection with a motion to compel further. Code of Civil Procedure section 2033.290(b)(2) allows a moving party to file a concise outline detailing each discovery response to be compelled further in lieu of the separate statement. Here, Plaintiff did not file a separate statement or concise outline in lieu of separate statement detailing why RFA Nos. 5, 13, 15, 16, 17, 19, 20, 23– 26, 28–32, 34–35, 37–38, 40–41 require further response.

Defendant argues that the motion should be denied for this reason, citing applicable statutory requirements. (Opp., p. 2.) In reply, Plaintiff argues that the moving papers identify the specific RFAs in dispute and reasons why further responses are warranted in compliance with the rules. (Reply, p. 3.)

Here, Plaintiff does not provide the court with a concise outline detailing each discovery response to be compelled further. Rather, Plaintiff makes general allegations. For example, Plaintiff argues that “many of these RFAs address facts that are squarely within Defendant’s personal knowledge” but does not specify which RFAs they are referencing. (Mot., p. 8.) Further, Plaintiff alleges that where deposition testimony has placed subject matter of RFAs squarely within Defendant’s knowledge and Defendant subsequently asserts inability to admit or deny them, but Plaintiff does not identify which specific RFAs they are referencing. While these allegations fall under headings grouping several RFAs, Plaintiff makes allegations of insufficiency pertaining to only some of the RFAs within that subgroup and fails to identify which ones.

Accordingly, this requirement is not satisfied, and the motion is DENIED on procedural grounds.

Sanctions

The Court shall

impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff request

imposition of sanctions in the amount of \$3,000 against Defendant. (Mot., pp. 9-10.) Here, the Court will not award sanctions as the motion to compel further has been denied.

Accordingly, request for sanctions
is DENIED.

CONCLUSION
AND ORDER

Defendant's' Motion to Compel Further
Response to Requests for Admission (Res ID: 4729 is
DENIED.

Defendant's Motion to Compel Further
Response to Requests for Admission (Res ID: 5950 is DENIED.

Defendant's request for sanctions is DENIED.

MOVING PARTY shall provide notice.